

Anwar Rais v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 February 2021 · Writ-C No. 655 of 2021 · **Writ disposed; EE to decide objection after hearing; coercive action stayed six weeks**

HEADNOTE

A s.126 provisional assessment cannot be treated as final or enforced by recovery without considering the consumer's objection and affording a hearing under s.126(3) of the Electricity Act, 2003 and clause 8.1 of the U.P. Electricity Supply Code, 2005. Following *Shishir Jain*, the Court directed the Executive Engineer to decide the petitioner's 18 August 2020 objection by a reasoned speaking order within four weeks and stayed coercive action on the 1 December 2020 recovery demand for six weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

The petitioner held a 7 HP connection and claimed regular payment of charges. A vigilance inspection on 23 June 2020 alleged illegal use of electricity. A provisional assessment issued on 30 June 2020; he objected on 18 August 2020. The licensee treated the provisional assessment as final for want of a timely objection and issued a recovery demand on 1 December 2020. He sought certiorari against both notices and a mandamus against disconnection.

HOLDING-UNITS

INTERPLAY · UP-2005::8.1

final-assessment-hearing

HOLDING

Where an objection to a s.126 provisional assessment has been filed, the assessing officer cannot treat that provisional assessment as final and issue recovery without considering the objection and giving a hearing, as required by s.126(3) of the Electricity Act, 2003 and clause 8.1 of the Supply Code, 2005. The Executive Engineer was directed to decide the 18.8.2020 objection by a reasoned speaking order on final assessment within four weeks after hearing the petitioner; coercive action on the 1.12.2020 recovery demand was stayed for six weeks or until that decision, whichever was earlier.

¶ 1

PRINCIPLE TAGS

s126-3-hearing-required-before-enforcing-provisional-assessment Applied *Shishir Jain*: without a final assessment after considering the objection and hearing the consumer, recovery of the provisional assessment cannot be compelled; the EE was directed to decide the 18.8.2020 objection after hearing. Lead authorities: *Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd.* ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED UNAUTHORIZED USE AND THE QUANTUM OF ASSESSMENT

Left to the Executive Engineer on the 18.8.2020 objection. ¶ 1

NOT DECIDED — WHETHER THE 18.8.2020 OBJECTION WAS WITHIN THE TIME ALLOWED FOR OBJECTING TO THE PROVISIONAL ASSESSMENT

The licensee asserted it was late; the Court did not decide the time-bar and directed the objection to be considered. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Shishir Jain v. Paschimanchal Vidyut</i>			1	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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Vitran Nigam Ltd. 2017 (3) AWC 3084				
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SCJ-2718 · Anwar Rais v. State of U.P. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.